Philippine Consumer-Remedy Corpus

A consolidated reference of the statutes and agency guidance that govern remedies for a defective consumer purchase in the Philippines.

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Provisions outside the scope of this corpus have been omitted rather than summarised: no provision appears here in paraphrase. Explanatory notes written by me for my own use have been removed, so every passage in this document is primary source material.

PART I - REPUBLIC ACT NO. 7394, THE CONSUMER ACT OF THE PHILIPPINES (1992)

Declaration Of Basic Policy

Article 2. Declaration of Basic Policy. - It is the policy of the State to protect the interests of the consumer, promote his general welfare and to establish standards of conduct for business and industry. Towards this end, the State shall implement measures to achieve the following objectives: a) protection against hazards to health and safety; b) protection against deceptive, unfair and unconscionable sales acts and practices; c) provision of information and education to facilitate sound choice and the proper exercise of rights by the consumer; d) provision of adequate rights and means of redress; and e) involvement of consumer representatives in the formulation of social and economic policies.

Deceptive, Unfair And Unconscionable Sales Acts

Article 50. Prohibition Against Deceptive Sales Acts or Practices. - A deceptive act or practice by a seller or supplier in connection with a consumer transaction violates this Act whether it occurs before, during or after the transaction. An act or practice shall be deemed deceptive whenever the producer, manufacturer, supplier or seller, through concealment, false representation of fraudulent manipulation, induces a consumer to enter into a sales or lease transaction of any consumer product or service.

The act or practice of a seller or supplier is deceptive when it represents that: a) a consumer product or service has the sponsorship, approval, performance, characteristics, ingredients, accessories, uses, or benefits it does not have; b) a consumer product or service is of a particular standard, quality, grade, style, or model when in fact it is not; c) a consumer product is new, original or unused, when in fact, it is in a deteriorated, altered, reconditioned, reclaimed or second-hand state; d) a consumer product or service is available to the consumer for a reason that is different from the fact; e) a consumer product or service has been supplied in accordance with the previous representation when in fact it is not; f) a consumer product or service can be supplied in a quantity greater than the supplier intends; g) a service, or repair of a consumer product is needed when in fact it is not; h) a specific price advantage of a consumer product exists when in fact it does not; i) the sales act or practice involves or does not involve a warranty, a disclaimer of warranties, particular warranty terms or other rights, remedies or obligations if the indication is false; and j) the seller or supplier has a sponsorship, approval, or affiliation he does not have.

Article 52. Unfair or Unconscionable Sales Act or Practice. - An unfair or unconscionable sales act or practice by a seller or supplier in connection with a consumer transaction violates this Chapter whether it occurs before, during or after the consumer transaction. An act or practice shall be deemed unfair or unconscionable whenever the producer, manufacturer, distributor, supplier or seller, by taking advantage of the consumer's physical or mental infirmity, ignorance, illiteracy, lack of time or the general conditions of the environment or surroundings, induces the consumer to enter into a sales or lease transaction grossly inimical to the interests of the consumer or grossly one-sided in favor of the producer, manufacturer, distributor, supplier or seller.

Article 60. Penalties. - a) Any person who shall violate the provisions of Title III, Chapter I, shall upon conviction, be subject to a fine of not less than Five Hundred Pesos (P500.00) but not more than Ten Thousand Pesos (P10,000.00) or imprisonment of not less than five (5) months but not more than one (1) year or both, upon the discretion of the court.

b) In addition to the penalty provided for in paragraph (1), the court may grant an injunction restraining the conduct constituting the contravention of the provisions of Articles 50 and 51 and/or actual damages and such other orders as it thinks fit to redress injury to the person caused by such conduct.

Warranties

Article 68. Additional Provisions on Warranties.

a) Terms of express warranty. - Any seller or manufacturer who gives an express warranty shall:

1) set forth the terms of warranty in clear and readily understandable language and clearly identify himself as the warrantor;

2) identify the party to whom the warranty is extended;

3) state the products or parts covered;

4) state what the warrantor will do in the event of a defect, malfunction or failure to conform to the written warranty and at whose expense;

5) state what the consumer must do to avail of the rights which accrue to the warranty; and

6) stipulate the period within which, after notice of defect, malfunction or failure to conform to the warranty, the warrantor will perform any obligation under the warranty.

b) Express warranty - operative from moment of sale. - All written warranties or guarantees issued by a manufacturer, producer, or importer shall be operative from the moment of sale.

3) Retail. - The retailer shall be subsidiarily liable under the warranty in case of failure of both the manufacturer and distributor to honor the warranty.

4) Enforcement of warranty or guarantee. - The warranty rights can be enforced by presentment of a claim. To this end, the purchaser needs only to present to the immediate seller either the warranty card or the official receipt along with the product to be serviced or returned to the immediate seller. NO OTHER DOCUMENTARY REQUIREMENT SHALL BE DEMANDED FROM THE PURCHASER.

6) Contrary stipulations - null and void. - All covenants, stipulations or agreements contrary to the provisions of this Article shall be without legal effect.

c) Designation of warranties. - A written warranty shall clearly and conspicuously designate such warranty as "Full warranty" if it meets the minimum requirements in paragraph (d), or "Limited warranty" if it does not.

d) Minimum standards for warranties. - For the warrantor of a consumer product to meet the minimum standards for warranty, he shall:

1) remedy such consumer product within a reasonable time and without charge in case of a defect, malfunction or failure to conform to such written warranty;

2) permit the consumer to elect whether to ask for a refund or replacement without charge of such product or part, where after a reasonable number of attempts to remedy the defect or malfunction, the product continues to have the defect or to malfunction.

The warrantor will not be required to perform the above duties if he can show that the defect, malfunction or failure to conform to a written warranty was caused by damage due to unreasonable use thereof.

e) Duration of warranty. - The seller and the consumer may stipulate the period within which the express warranty shall be enforceable. If the implied warranty on merchantability accompanies an express warranty, both will be of equal duration. ANY OTHER IMPLIED WARRANTY SHALL ENDURE NOT LESS THAN SIXTY (60) DAYS NOR MORE THAN ONE (1) YEAR FOLLOWING THE SALE OF NEW CONSUMER PRODUCTS.

f) Breach of warranties.

1) In case of breach of express warranty, the consumer may elect to have the goods repaired or its purchase price refunded by the warrantor. In case the repair of the product in whole or in part is elected, the warranty work must be made to conform to the express warranty WITHIN THIRTY (30) DAYS by either the warrantor or his representative. The thirty-day period may be extended by conditions beyond the control of the warrantor. In case the refund of the purchase price is elected, the amount directly attributable to the use of the consumer prior to the discovery of the non-conformity shall be deducted.

2) In case of breach of implied warranty, the consumer may retain the goods and recover damages, or reject the goods, cancel the contract and recover from the seller so much of the purchase price as has been paid, including damages.

Article 71. Guaranty of Service Firms. - Service firms shall guarantee workmanship and replacement of spare parts for a period NOT LESS THAN NINETY (90) DAYS which shall be indicated in the pertinent invoices.

Article 72. Prohibited Acts. - The following acts are prohibited: a) refusal without any valid legal cause by the local manufacturer or any person obligated under the warranty or guarantee to honor a warranty or guarantee issued; b) unreasonable delay by the local manufacturer or any person obligated under the warranty or guarantee in honoring the warranty; c) removal by any person of a product's warranty card for the purpose of evading said warranty obligation; d) any false representation in an advertisement as to the existence of a warranty or guarantee.

Article 73. Penalties. - b) Any person, natural or juridical, committing any of the illegal acts provided for in Chapter III, except with respect to Article 67, shall be liable for a fine of not less than One thousand pesos (P1,000.00) but not more than Fifty thousand pesos (P50,000.00) or imprisonment for a period of at least one (1) year but not more than five (5) years, or both, at the discretion of the court. The imposition of any of the penalties herein provided is without prejudice to any liability incurred under the warranty or guarantee.

Liability For Defective Products And Services

Article 97. Liability for the Defective Products. - Any Filipino or foreign manufacturer, producer, and any importer, shall be liable for redress, INDEPENDENTLY OF FAULT, for damages caused to consumers by defects resulting from design, manufacture, construction, assembly and erection, formulas and handling and making up, presentation or packing of their

products, as well as for the insufficient or inadequate information on the use and hazards thereof.

A product is defective when it does not offer the safety rightfully expected of it. A product is not considered defective because another better quality product has been placed in the market.

The manufacturer, builder, producer or importer shall not be held liable when it evidences: a) that it did not place the product on the market; b) that although it did place the product on the market such product has no defect; c) that the consumer or a third party is solely at fault.

Article 98. Liability of Tradesman or Seller. - The tradesman/seller is likewise liable, pursuant to the preceding article when: a) it is not possible to identify the manufacturer, builder, producer or importer; b) the product is supplied, without clear identification of the manufacturer, producer, builder or importer; c) he does not adequately preserve perishable goods.

Article 100. Liability for Product and Service Imperfection. - The suppliers of durable or nondurable consumer products are jointly liable for imperfections in quality that render the products unfit or inadequate for consumption for which they are designed or decrease their value, and for those resulting from inconsistency with the information provided on the container, packaging, labels or publicity messages/advertisement, the consumer being able to demand replacement of the imperfect parts.

IF THE IMPERFECTION IS NOT CORRECTED WITHIN THIRTY (30) DAYS, the consumer may alternatively demand at his option: a) the replacement of the product by another of the same kind, in a perfect state of use; b) the immediate reimbursement of the amount paid, with monetary updating, without prejudice to any losses and damages; c) a proportionate price reduction.

The parties may agree to reduce or increase the thirty-day term; but such shall not be less than seven (7) nor more than one hundred and eighty (180) days.

Article 102. Liability for Service Quality Imperfection. - The service supplier is liable for any quality imperfections that render the services improper for consumption or decrease their value, the consumer being entitled to demand alternatively at his option: a) the performance of the services, without any additional cost and when applicable; b) the immediate reimbursement of the amount paid, with monetary updating without prejudice to losses and damages, if any; c) a proportionate price reduction.

Article 103. Repair Service Obligation. - When services are provided for the repair of any product, the supplier shall be considered implicitly bound to use adequate, new, original replacement parts, or those that maintain the manufacturer's technical specifications unless otherwise authorized by the consumer.

Article 104. Ignorance of Quality Imperfection. - The supplier's ignorance of the quality imperfections due to inadequacy of the products and services does not exempt him from any liability.

Article 106. Prohibition in Contractual Stipulation. - The stipulation in a contract of a clause preventing, exonerating or reducing the obligation to indemnify for damages effected, as provided for in this and in the preceding Articles, IS HEREBY PROHIBITED.

Filing A Consumer Complaint

Article 159. Consumer Complaints. - The concerned department may commence an investigation upon petition or upon letter-complaint from any consumer. The department shall establish procedures for systematically logging in, investigating and responding to consumer complaints, assuring as far as practicable simple and easy access on the part of the consumer to seek redress for his grievances.

Article 162. Arbitration Officers; Jurisdiction. - The consumer arbitration officers shall have original and exclusive jurisdiction to mediate, conciliate, hear and adjudicate all consumer complaints: Provided, however, That this does not preclude the parties from pursuing the proper judicial action.

Article 163. Investigation Procedure. - The consumer arbitration officer shall conduct hearings on any complaint received. Parties to the case shall be entitled to notice of the hearing. The consumer arbitration officer shall first and foremost ensure that the contending parties come to a settlement of the case. In the event that a settlement has not been effected, the officer may proceed to formally investigate, hear and decide the case. THE COMPLAINTS SHALL BE DECIDED WITHIN FIFTEEN (15) DAYS FROM THE TIME THE INVESTIGATION WAS TERMINATED.

Article 164. Sanctions. - After investigation, any of the following administrative penalties may be imposed even if not prayed for in the complaint: a) the issuance of a cease and desist order; b) the acceptance of a voluntary assurance of compliance or discontinuance from the respondent, which may include an assurance to recall, replace, repair, or refund the money value of defective products distributed in commerce; c) restitution or rescission of the contract without damages; d) condemnation and seizure of the consumer product found to be hazardous to health and safety; e) THE IMPOSITION OF

ADMINISTRATIVE FINES IN SUCH AMOUNT AS DEEMED REASONABLE BY THE SECRETARY, WHICH SHALL IN NO CASE BE LESS THAN FIVE HUNDRED PESOS (P500.00) NOR MORE THAN THREE HUNDRED THOUSAND PESOS (P300,000.00) depending on the gravity of the offense, AND AN ADDITIONAL FINE OF NOT MORE THAN ONE THOUSAND PESOS (P1,000.00) FOR EACH DAY OF CONTINUING VIOLATION.

Article 165. Appeal from Orders. - Any order, not interlocutory, of the consumer arbitration officer becomes final and executory unless appealed to the Department Secretary concerned WITHIN FIFTEEN (15) DAYS from receipt of such order. An appeal may be entertained only on any of the following grounds: a) grave abuse of discretion; b) the order is in excess of the jurisdiction or authority of the consumer arbitration officer; c) the order is not supported by the evidence or there is serious error in the findings of facts.

Article 166. Decision on Appeal. - The Secretary shall decide the appeal WITHIN THIRTY (30) DAYS from receipt thereof. The decision becomes final after fifteen (15) days from receipt thereof unless a petition for certiorari is filed with the proper court.

Prescription And Relation To Other Rights

Article 167. Relation of the Act to Other Rights. - The provisions of this Act shall apply notwithstanding any agreement to the contrary but shall not restrict, limit or derogate from any other rights or remedies of a consumer under any other law.

Article 169. Prescription. - ALL ACTIONS OR CLAIMS ACCRUING UNDER THE PROVISIONS OF THIS ACT AND THE RULES AND REGULATIONS ISSUED PURSUANT THERETO SHALL PRESCRIBE WITHIN TWO (2) YEARS FROM THE TIME THE CONSUMER TRANSACTION WAS CONSUMMATED or the deceptive or unfair and unconscionable act or practice was committed AND IN CASE OF HIDDEN DEFECTS, FROM DISCOVERY THEREOF.

PART II - REPUBLIC ACT NO. 8792, THE ELECTRONIC COMMERCE ACT OF 2000

Key Definitions (Section 5)

(c) "Electronic Data Message" refers to information generated, sent, received or stored by electronic, optical or similar means.

(f) "Electronic Document" refers to information or the representation of information, data, figures, symbols or other modes of written expression, described or however represented, by which a right is established or an obligation extinguished, or by which a fact may be proved and affirmed, which is received, recorded, transmitted, stored, processed, retrieved or produced electronically.

(e) "Electronic Signature" refers to any distinctive mark, characteristic and/or sound in electronic form, representing the identity of a person and attached to or logically associated with the electronic data message or electronic document.

(j) "Service provider" refers to a provider of on-line services or network access or the operator of facilities therefor, including entities offering the transmission, routing, or providing of connections for online communications.

Legal Recognition Of Electronic Records

Section 6. Legal Recognition of Electronic Data Messages - INFORMATION SHALL NOT BE DENIED LEGAL EFFECT, VALIDITY OR ENFORCEABILITY SOLELY ON THE GROUNDS THAT IT IS IN THE DATA MESSAGE purporting to give rise to such legal effect, or that it is merely referred to in that electronic data message.

Section 7. Legal Recognition of Electronic Documents - ELECTRONIC DOCUMENTS SHALL HAVE THE LEGAL EFFECT, VALIDITY OR ENFORCEABILITY AS ANY OTHER DOCUMENT OR LEGAL WRITING, and -

(a) Where the law requires a document to be in writing, that requirement is met by an electronic document if the said electronic document maintains its integrity and reliability and can be authenticated so as to be usable for subsequent reference, in that -

i. The electronic document has remained complete and unaltered, apart from the addition of any endorsement and any authorized change, or any change which arises in the normal course of communication, storage and display; and

ii. The electronic document is reliable in the light of the purpose for which it was generated and in the light of all relevant circumstances.

For evidentiary purposes, an electronic document shall be the functional equivalent of a written document under existing laws.

Section 8. Legal Recognition of Electronic Signatures - An electronic signature on the electronic document shall be equivalent to the signature of a person on a written document if that signature is proved by showing that a prescribed procedure, not alterable by the parties interested in the electronic document, existed under which: (a) A method is used to identify the party sought to be bound and to indicate said party's access to the electronic document necessary for his consent or approval through the electronic signature; (b) Said method is reliable and appropriate for the purpose for which the electronic document was generated or communicated; (c) It is necessary for the party sought to be bound, in order to proceed further with the transaction, to have executed or provided the electronic signature; and (d) The other party is authorized and enabled to verify the electronic signature and to make the decision to proceed with the transaction authenticated by the same.

Section 10. Original Documents - Where the law requires information to be presented or retained in its original form, that requirement is met by an electronic data message or electronic document if the integrity of the information from the time when it was first generated in its final form is shown by evidence aliunde or otherwise, and where it is required that information be presented, that the information is capable of being displayed to the person to whom it is to be presented.

The criteria for assessing integrity shall be whether the information has remained complete and unaltered, apart from the addition of any endorsement and any change which arises in the normal course of communication, storage and display.

Electronic Records As Evidence

Section 12. Admissibility and Evidential Weight of Electronic Data Message or Electronic Document - In any legal proceedings, NOTHING IN THE APPLICATION OF THE RULES ON EVIDENCE SHALL DENY THE ADMISSIBILITY OF AN ELECTRONIC DATA MESSAGE OR ELECTRONIC DOCUMENT IN EVIDENCE - (a) On the sole ground that it is in electronic form; or (b) On the ground that it is not in the standard written form,

and the electronic data message or electronic document meeting and complying with the requirements under Sections 6 or 7 hereof SHALL BE THE BEST EVIDENCE of the agreement and transaction contained therein.

In assessing the evidential weight of an electronic data message or electronic document, the reliability of the manner in which it was generated, stored or communicated, the reliability of the manner in which its originator was identified, and other relevant factors shall be given due regard.

Section 13. Retention of Electronic Data Message or Electronic Document - The requirement in any provision of law that certain documents be retained in their original form is satisfied by retaining them in the form of an electronic data message or electronic document which:

(i) Remains accessible so as to be usable for subsequent reference;

(ii) Is retained in the format in which it was generated, sent or received, or in a format which can be demonstrated to accurately represent it;

(iii) Enables the identification of its originator and addressee, as well as the determination of the date and the time it was sent or received.

Section 11. Authentication - The person seeking to introduce an electronic data message or electronic document in any legal proceeding has the burden of proving its authenticity by evidence capable of supporting a finding that the electronic data message or electronic document is what the person claims it to be.

Online Contracts

Section 16. Formation and Validity of Electronic Contracts - Except as otherwise agreed by the parties, an offer, the acceptance of an offer and such other elements required under existing laws for the formation of contracts may be expressed in, demonstrated and proved by means of electronic data messages or electronic documents, and NO CONTRACT SHALL BE DENIED VALIDITY OR ENFORCEABILITY ON THE SOLE GROUND THAT IT IS IN THE FORM OF AN ELECTRONIC DATA MESSAGE OR ELECTRONIC DOCUMENT, or that any or all of the elements required under existing laws for the formation of contracts is expressed, demonstrated and proved by means of electronic data messages or electronic documents.

Section 17. Recognition by Parties of Electronic Data Message or Electronic Document - As between the originator and the addressee of an electronic data message or electronic document, a declaration of will or other statement shall not be denied legal effect, validity or enforceability solely on the ground that it is in the form of an electronic data message.

Section 21. Time of Dispatch - Unless otherwise agreed between the originator and the addressee, the dispatch of an electronic data message or electronic document occurs when it enters an information system outside the control of the originator.

Section 22. Time of Receipt - Unless otherwise agreed, if the addressee has designated an information system for the purpose of receiving electronic data messages or electronic documents, receipt occurs at the time when the message enters the designated information system. If sent to an information system that is not the designated one, receipt occurs at the time when the message is retrieved by the addressee.

Consumer Protection Online

Section 29. Authority of the Department of Trade and Industry - The Department of Trade and Industry (DTI) shall direct and supervise the promotion and development of electronic commerce in the country with relevant government agencies.

Among others, the DTI is empowered to promulgate rules and regulations, as well as provide quality standards or issue certifications, and perform such other functions as may be necessary for the implementation of this Act in the area of electronic commerce to include, but shall not be limited to, the installation of an online public information and quality and price monitoring system for goods and services AIMED AT PROTECTING THE INTERESTS OF THE CONSUMING PUBLIC availing of the advantages of this Act.

Section 33. Penalties - The following acts shall be penalized by fine and/or imprisonment, as follows:

(a) Hacking or cracking, which refers to unauthorized access into or interference in a computer system/server or information and communication system, or any access in order to corrupt, alter, steal, or destroy using a computer or other similar information and communication devices, without the knowledge and consent of the owner: minimum fine of One Hundred Thousand pesos (P100,000.00) and a maximum commensurate to the damage incurred, and mandatory imprisonment of six (6) months to three (3) years.

(b) Piracy, or the unauthorized copying, reproduction, dissemination, distribution, importation, use, removal, alteration, substitution, modification, storage, uploading, downloading, communication, making available to the public, or broadcasting of protected material through telecommunication networks such as the internet, in a manner that infringes

intellectual property rights: minimum fine of One Hundred Thousand pesos (P100,000.00) and a maximum commensurate to the damage incurred, and mandatory imprisonment of six (6) months to three (3) years.

(c) VIOLATIONS OF THE CONSUMER ACT OR REPUBLIC ACT NO. 7394 AND OTHER RELEVANT OR PERTINENT LAWS THROUGH TRANSACTIONS COVERED BY OR USING ELECTRONIC DATA MESSAGES OR ELECTRONIC DOCUMENTS, SHALL BE PENALIZED WITH THE SAME PENALTIES AS PROVIDED IN THOSE LAWS.

(d) Other violations of the provisions of this Act shall be penalized with a maximum penalty of one million pesos (P1,000,000.00) or six (6) years imprisonment.

PART III - REPUBLIC ACT NO. 10642, THE PHILIPPINE LEMON LAW (2014)

Coverage And Definitions

Section 1. Short Title. - This Act shall be known as the "Philippine Lemon Law".

Section 2. Declaration of Policy. - It is hereby declared the policy of the State to promote full protection to the rights of consumers in the sale of motor vehicles against business and trade practices which are deceptive, unfair or otherwise inimical to consumers and the public interest.

The State recognizes that a motor vehicle is a major consumer purchase or investment. Hence, the rights of consumers should be clearly defined, including the means for redress for violations thereof.

Section 3. Definition of Terms. - As used in this Act:

(a) Brand new motor vehicle refers to a vehicle constructed entirely from new parts and covered by a manufacturer's express warranty at the time of purchase that it has never been sold or registered with the Department of Transportation and Communications (DOTC) or an appropriate agency or authority, and has never been operated on any highway of the Philippines, or in any foreign state or country;

(b) Collateral charges refer to the fees paid to the Land Transportation Office (LTO) for the registration of a brand new motor vehicle and other incidental expenses such as, but not limited to, the cost of insurance pertaining to the vehicle, chattel mortgage fees and interest expenses if applicable;

(c) Comparable motor vehicle refers to a motor vehicle that is identical or reasonably equivalent to the motor vehicle to be replaced, in terms of specifications and values, subject to availability, as the motor vehicle existed at the time of purchase: Provided, That there shall be an offsetting from this value for reasonable allowance for its use;

(d) Consumer refers to any person, natural or juridical, who purchases a brand new motor vehicle either by cash or credit from an authorized distributor, dealer or retailer in the Philippines;

(h) Lemon Law rights period refers to the period ending twelve (12) months after the date of the original delivery of a brand new motor vehicle to a consumer or the first twenty thousand (20,000) kilometers of operation after such delivery, whichever comes first. This shall be the period during which the consumer can report any nonconformity to the standards and specifications of the manufacturer, authorized distributor, authorized dealer or retailer, and pursue any right as provided for under this Act;

(j) Motor vehicle refers to any self-propelled, four (4) wheeled road vehicle designed to carry passengers including, but not limited to, sedans, coupes, station wagons, convertibles, pick-ups, vans, sports utility vehicles (SUVs) and Asian Utility Vehicles (AUVs) BUT EXCLUDING MOTORCYCLES, DELIVERY TRUCKS, DUMP TRUCKS, BUSES, ROAD ROLLERS, TROLLEY CARS, STREET SWEEPERS, SPRINKLERS, LAWN MOWERS AND HEAVY EQUIPMENT such as, but not limited to, bulldozers, payloaders, graders, forklifts, amphibian trucks, cranes, and vehicles which run only on rails or tracks, and tractors, trailers and traction engines of all kinds used exclusively for agricultural purposes. Trailers having any number of wheels, when propelled or intended by attachment to a motor vehicle, shall be classified as separate motor vehicle with no power rating;

(k) Nonconformity refers to any defect or condition that substantially impairs the use, value or safety of a brand new motor vehicle which prevents it from conforming to the manufacturer's or distributor's standards or specifications, which cannot be repaired, but excluding conditions resulting from noncompliance by the consumer of his or her obligations under the warranty, modifications not authorized by the manufacturer or distributor, abuse or neglect, and damage due to accident or force majeure;

(l) Purchase price refers to the invoice price or the amount of money which the dealer or retailer actually received for the brand new motor vehicle, in consideration of the sale of such brand new motor vehicle.

Section 4. Coverage. - This Act shall cover BRAND NEW MOTOR VEHICLES purchased in the Philippines reported by a consumer to be in nonconformity with the vehicle's manufacturer or distributor's standards or specifications WITHIN TWELVE (12) MONTHS from the date of original delivery to the consumer, OR UP TO TWENTY THOUSAND (20,000) KILOMETERS of operation after such delivery, WHICHEVER COMES FIRST. The following causes of nonconformity shall be excluded:

(a) Noncompliance by the consumer of the obligations under the warranty; (b) Modifications not authorized by the manufacturer, distributor, authorized dealer or retailer; (c) Abuse or neglect of the brand new motor vehicle; and (d) Damage to the vehicle due to accident or force majeure.

The Four-Repair Rule And The Notice Requirement

Section 5. Repair Attempts. - At any time within the Lemon Law rights period, and AFTER AT LEAST FOUR (4) SEPARATE REPAIR ATTEMPTS by the same manufacturer, distributor, authorized dealer or retailer FOR THE SAME COMPLAINT, and the nonconformity issue remains unresolved, the consumer may invoke his or her rights under this Act.

The repair may include replacement of parts components, or assemblies.

Section 6. Notice of Availment of Lemon Law Rights. - Before availing of any remedy under this Act and subject to compliance with the provisions of Section 5 hereof, the consumer shall, IN WRITING, notify the manufacturer, distributor, authorized dealer or retailer of the unresolved complaint, and the consumer's intention to invoke his or her rights under this Act within the Lemon Law rights period.

The warranty booklet issued by the manufacturer, distributor, authorized dealer or retailer shall clearly state the manner and form of such notice to constitute a valid and legal notice to the manufacturer, distributor, authorized dealer or retailer. It shall also clearly state the responsibility of the consumer under this section.

Section 7. Availment of Lemon Law Rights. - Subsequent to filing the notice of availment referred to in the preceding section, the consumer shall bring the vehicle to the manufacturer, distributor, authorized dealer or retailer from where the vehicle was purchased for A FINAL ATTEMPT to address the complaint of the consumer to his or her satisfaction.

It shall be the duty of the manufacturer, distributor, authorized dealer or retailer, upon receipt of the motor vehicle and the notice of nonconformity required under Section 6 hereof, to attend to the complaints of the consumer including, as may be necessary, making the repairs and undertaking such actions to make the vehicle conform to the standards or specifications.

In case the nonconformity issue remains unresolved despite the manufacturer, distributor, authorized dealer or retailer's efforts to repair the vehicle, pursuant to the consumer's availment of his or her Lemon Law rights, the consumer may file a complaint before the DTI as provided for under this Act: Provided, however, That IF THE VEHICLE IS NOT RETURNED FOR REPAIR, based on the same complaint, WITHIN THIRTY (30) CALENDAR DAYS from the date of notice of release of the motor vehicle to the consumer following this repair attempt within the Lemon Law rights period, THE REPAIR IS DEEMED SUCCESSFUL: Provided, finally, That, in the event that the nonconformity issue still exists or persists after the thirty (30)-day period but still within the Lemon Law rights period, the consumer may be allowed to avail of the same remedies under Sections 5 and 6 hereof.

To compensate for the non-usage of the vehicle while under repair and during the period of availment of the Lemon Law rights, THE CONSUMER SHALL BE PROVIDED A REASONABLE DAILY TRANSPORTATION ALLOWANCE, an amount which covers the transportation of the consumer from his or her residence to his or her regular workplace or destination and vice versa, equivalent to air-conditioned taxi fare, as evidenced by official receipt, or in such amount to be agreed upon by the parties, or a service vehicle at the option of the manufacturer, distributor, authorized dealer or retailer. Any disagreement on this matter shall be resolved by the DTI.

NOTHING HEREIN SHALL BE CONSTRUED TO LIMIT OR IMPAIR THE RIGHTS AND REMEDIES OF A CONSUMER UNDER ANY OTHER LAW.

Where The Case Is Heard, And What The Consumer Gets

Section 8. Remedies for Dispute Resolution. - THE DTI SHALL EXERCISE EXCLUSIVE AND ORIGINAL JURISDICTION over disputes arising from the provisions of this Act. All disputes arising from the provisions of this Act shall be settled by the DTI in accordance with the following dispute resolution mechanisms:

(a) Mediation

(1) The principles of negotiation, conciliation and mediation towards amicable settlement between the manufacturer, distributor, authorized dealer or retailer and the consumer shall be strictly observed;

(2) In the course of its dispute resolution efforts, the DTI shall endeavor to independently establish the validity of the consumer's outstanding complaint. Any cost incurred in establishing the validity of the consumer's complaint shall be borne jointly by the consumer and the manufacturer, distributor, authorized dealer or retailer;

(3) The complaint shall be deemed valid if it is independently established that the motor vehicle does not conform to the standards or specifications set by the manufacturer, distributor, authorized dealer or retailer;

(5) All disputes that have been submitted for mediation SHALL BE SETTLED NOT LATER THAN TEN (10) WORKING DAYS from the date of filing of the complaint with the DTI.

(b) Arbitration

In the event there is a failure to settle the complaint during the mediation proceedings, both parties may voluntarily decide to undertake arbitration proceedings.

(c) Adjudication

(1) In the event that both parties do not undertake arbitration proceedings, at least one of the parties may commence adjudication proceedings, administered by the DTI. IN NO CASE SHALL ADJUDICATION PROCEEDINGS EXCEED TWENTY (20) WORKING DAYS;

(2) In case a finding of nonconformity is arrived at, the DTI shall rule in favor of the consumer and direct the manufacturer, distributor, authorized dealer or retailer TO GRANT EITHER OF THE FOLLOWING REMEDIES to the consumer:

(i) REPLACE the motor vehicle with a similar or comparable motor vehicle in terms of specifications and values, subject to availability; or

(ii) ACCEPT THE RETURN of the motor vehicle and PAY THE CONSUMER THE PURCHASE PRICE PLUS THE COLLATERAL CHARGES.

In case the consumer decides to purchase another vehicle with a higher value and specifications from the same manufacturer, distributor, authorized dealer or retailer, the consumer shall pay the difference in cost.

In both cases of replacement and repurchase, the reasonable allowance for use shall be deducted in determining the value of the nonconforming motor vehicle; and

(3) In case a nonconformity of the motor vehicle is not found by the DTI, it shall rule in favor of the manufacturer, distributor, authorized dealer or retailer, and direct the consumer to reimburse the costs incurred by the latter in validating the consumer's complaints.

An appeal may be taken from a final judgment or order of the Adjudication Officer which completely disposes of the case WITHIN FIFTEEN (15) DAYS from receipt thereof. The Secretary of the DTI shall decide on the appeal within thirty (30) days from receipt thereof.

Section 9. Determination of Reasonable Allowance for Use. - For purposes of this Act, "reasonable allowance for use" shall mean TWENTY PERCENT (20%) PER ANNUM deduction from the purchase price, OR the product of the distance traveled in kilometers and the purchase price divided by ONE HUNDRED THOUSAND (100,000) KILOMETERS, WHICHEVER IS LOWER.

Section 10. Disclosure on Resale. - Should the returned motor vehicle be made available for resale, the manufacturer, distributor, authorized dealer or retailer shall, prior to sale or transfer, DISCLOSE IN WRITING to the next purchaser of the same vehicle the following information:

(a) The motor vehicle was returned to the manufacturer, distributor, authorized dealer or retailer; (b) The nature of the nonconformity which caused the return; and (c) The condition of the motor vehicle at the time of the transfer.

The responsibility of the manufacturer, distributor, authorized dealer or retailer under this section shall cease upon the sale of the affected motor vehicle to the first purchaser.

Section 11. Penalty. - The manufacturer, distributor, authorized dealer or retailer adjudged to have violated the provisions requiring disclosure as mentioned in the preceding section shall be liable to pay A MINIMUM AMOUNT OF ONE HUNDRED THOUSAND PESOS (P100,000.00) as damages to the aggrieved party without prejudice to any civil or criminal liability they and/or the responsible officer may incur under existing laws.

PART IV - REPUBLIC ACT NO. 11967, THE INTERNET TRANSACTIONS ACT OF 2023

Who And What Is Covered

Section 1. Short Title. - This Act shall be known as the "Internet Transactions Act of 2023".

Section 3. Scope and Coverage. - This Act shall apply to all business-to-business and business-to-consumer internet transactions within the mandate of the Department of Trade and Industry (DTI), where one (1) of the parties is situated in the Philippines or where the digital platform, e-retailer, or online merchant is availing of the Philippine market and has minimum contacts therein: Provided, That online media content, AND CONSUMER-TO-CONSUMER (C2C) TRANSACTIONS SHALL NOT BE COVERED UNDER THE ACT.

Section 4. Definition of Terms. - As used in this Act:

(b) Business-to-consumer Transaction refers to internet transactions between businesses and end-users;

(c) CONSUMER-TO-CONSUMER (C2C) TRANSACTIONS refer to transactions between end-users done for personal, family, or household purposes and NOT DONE IN ORDINARY COURSE OF BUSINESS;

(e) E-marketplace refers to digital platforms whose business is to connect online consumers with online merchants, facilitate the shipment of goods or provide logistics services and post-purchase support within such platforms, and otherwise retains oversight over the consummation of the transaction;

(f) E-retailer refers to a natural or juridical person selling goods or services directly to online consumers through its own website, webpage or application;

(i) Online Consumer refers to a natural or juridical person who purchases, leases, receives, or subscribes to goods or services over the internet for a fee;

(j) Online Merchant refers to a person selling non-financial goods or services to online consumers through an e-marketplace or third-party digital platforms.

Section 5. Extra-territorial Application. - A person who engages in e-commerce, who avails of the Philippine market to the extent of establishing minimum contacts herein, SHALL BE SUBJECT TO APPLICABLE PHILIPPINE LAWS AND REGULATIONS and cannot evade legal liability in the Philippines despite lack of legal presence in the country.

Section 6. Equal Treatment of Online and Offline Commercial Activities. - Unless otherwise specified, this Act shall be construed to ensure that those who engage in e-commerce SHALL NOT ENJOY ANY BENEFICIAL TREATMENT THAT IS MORE FAVORABLE, NOR BE PLACED AT A DISADVANTAGE, in relation to other enterprises that offer goods and services offline in the Philippines.

What The Online Buyer May Demand

Section 19. Obligations of Online Consumers. - The online consumer shall exercise ordinary diligence in any internet transaction.

If the transaction includes the delivery of the purchased goods, the online consumer shall not cancel confirmed orders when the said items have already been paid for by, or the goods are perishable in nature and are already in the possession of a third-party delivery service, or otherwise in transit to the online consumer unless:

(a) The online consumer uses electronic or digital payment and authorized the crediting of the amount despite cancellation; (b) The online consumer reimburses third-party delivery service as a pre-condition for the cancellation of the order; (c) The transaction allows cancellation for a fee; or (d) The parties agree otherwise.

Section 20. Remedies of Online Consumers. - IN CASE OF DEFECT, MALFUNCTION, OR LOSS WITHOUT THE FAULT OF THE ONLINE CONSUMER, or failure to conform with warranty or any liability of the online merchant or e-retailer arising from the contract, THE ONLINE CONSUMER SHALL HAVE THE RIGHT TO PURSUE REPAIR, REPLACEMENT, REFUND OR OTHER REMEDIES PROVIDED UNDER REPUBLIC ACT NO. 7394 or any existing relevant laws.

When the online consumer avails replacement or refund as a remedy, the online merchant is entitled to the return of the original goods delivered, WITHOUT ANY COST TO THE ONLINE CONSUMER, within a reasonable period from the receipt thereof, unless otherwise agreed upon by the parties. In case the refund is already paid, but the goods cannot be returned due to the fault of the online consumer, the amount received shall be immediately reimbursed to the online merchant or e-retailer subject to proportionate reduction in price, if appropriate.

What The Seller And The Platform Must Do

Section 21. Obligations of E-marketplaces. - Except as otherwise provided in this Act, e-marketplace shall:

(a) Ensure that the internet transactions on their platform:

(1) Are clearly identifiable as an e-commerce transaction;

(2) Identify the person or persons on whose behalf the e-commerce transaction is made; and

(3) Identify any promotional offer including any discount, premium, or gift, and that conditions required to qualify for it are accessible, clear, and unambiguous.

(b) Require, as far as practicable, all online merchants, whether foreign or Filipino, to submit the following, prior to listing with their platforms:

(1) Name of the online merchant accompanied by at least one (1) valid government identification for individuals or business registration documents for juridical entities;

(2) Geographic address where the online merchant is located;

(3) Contact details of the online merchant which must include a mobile or landline number and a valid e-mail address.

(f) PROVIDE AN EFFECTIVE AND RESPONSIVE REDRESS MECHANISM for online consumers and online merchants to report a user or information posted on the platform that are deemed in violation of relevant laws.

(g) Require all online merchants to clearly indicate the following in their product offers online, regardless of the nature of the goods and services:

(1) Name and brand of the goods or services;

(2) Price;

(3) Description; and

(4) Condition.

In performing their obligations under this section, e-marketplace and other digital platforms are required to observe ordinary diligence. Failure to do so will subject them to penalties under Section 29 of this Act.

Section 23. Obligations of E-retailers and Online Merchants. - An e-retailer or online merchant of digital or non-digital goods and services shall exercise the following responsibilities:

(a) Indicate the price of goods and services offered consistent with Article 81 of Republic Act No. 7394;

(b) ENSURE THAT THE GOODS ARE RECEIVED BY THE ONLINE CONSUMER:

(1) IN THE SAME CONDITION, TYPE, QUANTITY, AND QUALITY AS DESCRIBED AND STATED and, in applicable circumstances possess the functionality, compatibility, interoperability, and fitness for the purpose for which they were intended;

(2) In the same condition, type, quantity, and quality of a sample, picture, or model of the goods shown by the e-retailer or online merchant upon request of the online consumer, or of additional descriptions or specifications provided upon inquiries made by the online consumer; and

(3) It must also be fit for the particular purpose for which the online consumer requires them, as communicated to the e-retailer or online merchant at the time of the perfection of the contract, and which the e-retailer or online merchant has accepted;

(c) All the goods shall:

(1) Be delivered together with its accessories, including all other packaging, installation inclusions, any user manual, or other instructions as advertised or described, if applicable, with the relevant information stated in the packaging, printed or written in Filipino and/or English; and

(2) Possess qualities and performance capabilities, including functionality, compatibility, and interoperability, that are standard and normal in goods of the same type, which the online consumer may expect given its nature.

(h) E-RETAILERS OR ONLINE MERCHANTS SHALL ISSUE PAPER OR ELECTRONIC INVOICES OR RECEIPTS FOR ALL SALES.

(i) E-retailers shall have in place an accessible and efficient redress mechanism for handling complaints from their clients.

The Required First Step, And Who Pays

Section 24. Internal Redress Mechanism. - AN AGGRIEVED PARTY SHALL AVAIL OF THE INTERNAL REDRESS MECHANISM OF THE DIGITAL PLATFORM, E-MARKETPLACE OR E-RETAILER PRIOR TO THE FILING OF A COMPLAINT BEFORE ANY COURT OR APPROPRIATE GOVERNMENT AGENCY, or resorting to alternative

dispute resolution. SUCH MECHANISM IS DEEMED EXHAUSTED IF THE COMPLAINT REMAINS UNRESOLVED AFTER SEVEN (7) CALENDAR DAYS FROM FILING THEREOF.

Section 25. Primary Liability of E-retailers or Online Merchants. - THE E-RETAILER OR ONLINE MERCHANT SHALL BE PRIMARILY LIABLE for indemnifying the online consumer in civil actions or administrative complaints arising from the internet transaction, without prejudice to the imposition of other penalties as may be appropriate under Section 29 of this Act and other laws.

The liability of the e-marketplace or digital platform shall be treated as one and the same as the online merchant upon a finding that both are the same entity.

Section 26. Subsidiary Liability of E-marketplace or Digital Platforms. - The e-marketplace or digital platform that facilitated the internet transaction subject to a civil action or administrative complaint SHALL BE SUBSIDIARY LIABLE to the online consumer IF ANY OF THE FOLLOWING CIRCUMSTANCES ARE PRESENT:

(a) The digital platform or e-marketplace failed to exercise ordinary diligence in complying with its obligations under Sections 21 and 22 hereof, resulting in loss or damage to the online consumer; or

(b) If the digital platform or e-marketplace failed, after notice, to act expeditiously in removing or disabling access to goods or services that either infringe on another's intellectual property rights or is subject to a takedown order by an appropriate government agency; or

(c) IF THE ONLINE MERCHANT HAS NO LEGAL PRESENCE IN THE PHILIPPINES AND THE DIGITAL PLATFORM OR E-MARKETPLACE FAILED TO PROVIDE THE CONTACT DETAILS THEREOF DESPITE NOTICE.

The subsidiary liability of digital platforms or e-marketplace shall be limited only to the extent of damages suffered by the online consumer as a direct result of the transaction.

Digital platforms or e-marketplaces shall not be held liable for their reliance in good faith on an online merchant's representations, warranties, or submitted registration documents regardless if such information or documents are later proved to be inaccurate, false, or untrue: Provided, That the digital platform or e-marketplace must show evidence of good faith and that reasonable effort was exerted to ascertain and maintain the accuracy, authenticity and veracity of the documents or information submitted.

Section 27. Solidary Liability of E-marketplace or Digital Platform. - The e-marketplaces or digital platforms SHALL BE SOLIDARILY LIABLE if it fails, after notice, to act expeditiously to remove, or disable access to goods or services appearing on its platform that are PROHIBITED BY LAW, IMMINENTLY INJURIOUS, UNSAFE, OR DANGEROUS.

Deadline, Enforcement And Penalties

Section 28. Damages. - THE CONSUMER MAY CLAIM DAMAGES BY FILING A CASE BEFORE THE COURT OR THE DTI WITHIN TWO (2) YEARS FROM THE TIME THE CAUSE OF ACTION AROSE. The right to damages under this section shall be governed by the Civil Code, Republic Act No. 7394, and other existing laws.

Section 14. Authority to Issue Compliance Order. - The DTI Secretary shall have the power to issue a compliance order to require conformity with this Act, Republic Act No. 7394 or the "Consumer Act of the Philippines", or any other applicable trade and consumer protection issuances promulgated by the DTI.

Section 15. Authority to Issue Takedown Order. - The DTI Secretary, after investigation or verification, may issue an ex parte takedown order directing the removal of a listing or offer on a webpage, platform or application, regardless of the intended nature of the transaction, when any of the following is present:

(a) Sale or lease of goods or services which are prohibited or regulated under existing laws such as endangered animals, illicit drugs, fireworks and other explosives, and counterfeit goods: Provided, That the prohibited nature of the goods and services is apparent from the photo or description in the post; (b) Sale or lease of goods or services subject of a cease and desist order issued by an appropriate government agency; (c) Sale or lease of goods or services online previously subject of a takedown order but which are subsequently reposted and proliferated online by the seller under investigation; and (d) Such other transactions or activities online, within the jurisdiction of the DTI, purporting to sell or lease goods or services that otherwise threaten public or personal safety, compromises financial or personal information.

The violating entity shall be given an opportunity to be heard within forty-eight (48) hours from the issuance of a takedown order. The order shall remain in effect for a maximum period of thirty (30) days unless otherwise extended or made permanent by a judicial order or decision.

Section 16. Blacklisting of Online Business. - The DTI Secretary shall have the authority to establish A PUBLICLY ACCESSIBLE LIST of websites, webpages, online applications, social media accounts, or other similar platforms that fail to comply with a compliance order, or are subject of a takedown order, indicating the specific violation incurred.

Section 17. Online Dispute Resolution (ODR). - Within six (6) months from the effectivity of this Act, the DTI shall develop a platform to facilitate an alternative mode of dispute resolution for online consumers, online merchants, e-retailers, e-marketplaces, and other digital platforms.

Section 29. Penalties. - The DTI shall impose the following administrative fines as penalty against:

(b) An online merchant or e-retailer found guilty of any DECEPTIVE, UNFAIR OR UNCONSCIONABLE SALES ACT OR PRACTICE, done through the internet, shall be, IN ADDITION TO THE PENALTIES IMPOSED UNDER REPUBLIC ACT NO. 7394, punished with:

(1) A fine ranging from Twenty thousand pesos (P20,000.00) to One hundred thousand pesos (P100,000.00) for the first offense.

(2) A fine ranging from One hundred thousand pesos (P100,000.00) to Five hundred thousand pesos (P500,000.00) for the second offense.

(3) A fine ranging from Five hundred thousand pesos (P500,000.00) to One million pesos (P1,000,000.00) for the third and subsequent offenses.

The penalty of takedown shall be imposed, whenever applicable, in addition to the abovementioned penalties, by permanently removing any listing or offer on any website, webpage, online application, social media post, or on any similar platform.

The application of these penalties shall be without prejudice to the civil or criminal liability of the offending party under other laws or regulations.

Section 33. Applicability of the Civil Code. - In construing the rights and responsibilities of the parties, the Civil Code provisions on sales, and obligations and contracts shall apply.

Section 34. Interpretation. - In case of doubt, the provisions of this Act, including its implementing rules and regulations and subsequent issuances by the implementing agency, shall be construed in a manner that accords the highest respect for human dignity, consumer rights, and individual privacy.

PART V - DEPARTMENT OF TRADE AND INDUSTRY: CONSUMER GUIDANCE AND COMPLAINT PROCEDURE

The Eight Consumer Rights (Dti)

The Right to Basic Needs. The right that guarantees survival, adequate food, clothing, shelter, health care, education and sanitation. You may look forward to the availability of basic and prime commodities to consumers at affordable prices and of good quality.

The Right to Safety. The right to be protected against the marketing of goods or the provision of services that are hazardous to health and life. You may look forward to (1) manufacturers of consumer products to undertake extensive safety and performance testing before selling their products in the market, and (2) labels which contain the proper information as regards the product, its use and how to operate it, if the need arises, and also precautions or warning signs.

The Right to Information. The right to be protected against fraudulent/dishonest or misleading advertising/labelling/promotion and the right to be given the facts and information needed to make an informed choice. You may look forward to complete information about the product to be purchased, including its use, ingredients/chemical contents, precautions, if any, limitations and expiry date.

The Right to Choose. The right to choose products at competitive prices with an assurance of satisfactory quality.

The Right to Representation. The right to express consumer interests in the making and execution of government policies.

THE RIGHT TO REDRESS. The right to be compensated for misrepresentation, shoddy goods or unsatisfactory services. You may look forward to manufacturers/storeowners would replace defective goods pursuant to the provision "No Return, No Exchange" provided in the DTI's Implementing Rules and Regulations of Republic Act 7394, otherwise known as the Consumer Act of the Philippines.

The Right to Consumer Education. The right to acquire the knowledge and skills necessary to be an informed consumer.

The Right to a Healthy Environment. The right to live and work in an environment which is neither threatening nor dangerous, and which permits a life of dignity and well-being.

Filing A Complaint Against An Online Seller (Dti E-Commerce Faq)

Q: How do I file a consumer complaint against an online seller? A: To file a consumer complaint against an online seller, you may send your complaints to the DTI Fair-Trade Enforcement Bureau at fteb@dti.gov.ph. Kindly also CC eco@dti.gov.ph when you send your complaint.

Q: Does the DTI handle complaints about online sellers as well as physical stores? A: Yes, the DTI Fair-Trade Enforcement Bureau accommodates complaints for online and offline businesses. Contact them at fteb@dti.gov.ph

Q: What information should a legitimate online seller display? A: An online seller should have: - An office address / location - Contact information - Secure payment options - Return and exchange policy - Other relevant information - If transacting with an individual, ask for proof of identity preferably a government ID for validation

Q: What are the DTI's tips for safe online shopping? A: Here are some tips for safe online shopping: - Only buy from verified sellers. - Check for reviews. If a shop has bad reviews or no reviews at all, avoid buying from them. - Ask for actual item pictures if possible. You can also ask for pictures of the item/parcel before getting it shipped out. - If you are unsure of a store's credibility but want to buy from them, opt for Cash-on-Delivery as payment mode if possible. - Check an online shop/platform's returns, cancellation and refund policy before making any purchases. - Refrain from giving confidential information to sellers such as your MPIN, reference numbers and log-in credentials. - Pay with BSP accredited EMIs (e-money issuers) / payment platforms only. - Get in touch with authorities immediately for fraudulent cases.

How To File A Consumer Complaint (Dti Fair Trade Enforcement Bureau)

Q: How to file a consumer complaint?

A: Complainants within Metro Manila may submit complaints through the online portal consumercare.dti.gov.ph; or by sending their duly accomplished Complaint Form or complaint letter through email at consumercare@dti.gov.ph or in person to:

> THE DIRECTOR FAIR TRADE ENFORCEMENT BUREAU DTI Fair Trade Enforcement Bureau (FTEB) 5th Flr., Trade and Industry Building 361 Sen. Gil J. Puyat Ave., 1200 Makati City, Philippines

FAIR TRADE ENFORCEMENT BUREAU contact details, as published on the same page: Telephone Number: (02) 7215 1165 Mobile Number: 0917 137 3796 Email Address: fteb@dti.gov.ph Office hours: Monday to Friday, 8:00 am to 5:00 pm (except holidays)

The FTEB divisions that handle a docketed complaint, as listed on the bureau's own site, are the Mediation Division, the Adjudication Division, and the Prosecution Unit.